

In the jungle of web 3.0, Guido Scorza speaks

Agcom has laid down its guidelines, but the truth is that transparency in the world of web 3.0 is still far off, according to Guido Scorza

Interview with Guido Scorza, member of the Data Protection Authority

(by Lorenza Ferraiuolo, Fortuneita.com, April 20, 2024)

2024 opened with new rules from the Council of the Authority for Communications Guarantees (Agcom) for influencers in Italy. The push towards more defined regulation was certainly influenced by the 'pandoro-gate' involving entrepreneur Chiara Ferragni, who was accused of engaging in 'deceptive charity' with the company Balocco. Yet, as Guido Scorza – a member of the Data Protection Authority – explained to us, "regulating the 'jungle' of content creators was already on the agenda." After all, the guidelines are a set of pre-existing rules applied to other profiles. "Influencers are testimonials. They promote what was previously advertised only by very famous personalities from the entertainment or sports world. The difference is that they are 'ordinary people' who do not come directly from show business. They share pieces of their lives with their followers, making it easier for a follower to identify with them."

What do the new Agcom guidelines tell us?

Until now, the regulatory framework was limited to unclear provisions, primarily of a self-regulatory nature. The new obligations introduce more specific constraints that, for example, stipulate that a post must not be discriminatory or violent, and regulate commercial communications. In short, this is the daily bread for those who do this job. These are 'old' rules applied to a new sector. Work had been underway for at least 5 years; the Ferragni case simply gave it greater media resonance. Initially, the problem was how to ensure that an influencer made it known through an Instagram post, where there is a very limited character space, that what they were showing was effectively a partnership. This is how the hashtags #Ad or #Adv (Advertising) were born. Something very small that, frankly speaking, those focused on the image bypass. It's like the fine print of a contract. Probably in the social world, there is still little clarity.

Not everyone in the social world is flesh and blood. AI-generated influencers are becoming increasingly viral. In this case, are the rules the same?

Of course. Behind the fictitious influencer, there is someone who gives it substance, who concludes a sponsorship contract. Therefore, regarding the rules, there is relatively little change. As long as we are talking about advertising, the rules of transparency and fairness are the same. What changes concerns how we users make our data available (if we interact with an artificial influencer, to whom are we revealing things about our personal lives?) and the very construction of the influencer. The image is indeed created by using and blending other images circulating online. Almost always, there is a note in the bio of a synthetic profile stating "Powered by" with a tag referring to the AI company that produced it. But in the universe of social instantaneity, I don't know how many users realize this. They just scroll through the photos. In my opinion, there is also a fundamental issue of transparency here. Highlighting under each individual piece of content that one is looking at a person who does not exist could be a solution. If there is little transparency in the social world, there is even less in that of virtual influencers.

The issue of data is a challenge that the digital age has particularly posed to us. How can we face it and 'protect ourselves'?

The new frontier is the right to privacy. Originally, it was the right to confidentiality. Essentially, it means having control over one's data: we cannot prevent it from circulating for various reasons; what matters is knowing its flow and being able to eventually reach the subject who comes into possession of it. The GDPR (General Data Protection Regulation) provides a sufficient toolbox to allow anyone to defend their privacy. The two major limitations are that, objectively, for the individual, with few exceptions, it does not matter to control data traffic. The common thought is: if Meta, OpenAI, or TikTok know everything or almost everything about me, the most I will get are targeted ads based on my preferences. The second issue is that even the few who understand how fundamental data protection is struggle because, in a fast-paced universe that requires keeping up with the times, one does not stop to read pages and pages of privacy notices. In summary: rights exist, not everyone knows them,

and even those who do get tired.

There are States that are moving to ban social media for minors. Florida, for example, has approved a bill to ban social media for those under 16. How could or should Italy and Europe protect minors online? Could digital identity be useful?

The problem exists and is enormous: one-third of internet users are minors. Europe had somehow moved even before other States did: here the rule is to be 16 years old to be on social media, which in the Italian case has become 14. The social networks themselves present themselves to the public as reserved for those over thirteen, due to an American law. The real issue is self-declaration.

Because one takes information at face value. The methodological tool is called 'age verification' and for Spid, a very clear line must be drawn: our problem is to avert the risk that someone who does not meet the minimum age for a certain context is present; it is not about knowing the identity of that person. Therefore, it is necessary to set aside the idea of identity verification because the effect that would be produced is to hand over the certified identity of millions of citizens to the operator of a social network. The model that I hope will prevail is that of a third-party participant. That is, a service provider that verifies (also through Spid) the age and provides a digital proof of that age. All data related to the person is immediately deleted. No one will ever know who you are, only how old you are.